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FEBRUARY 2013



Prison Action News is a newsletter collaboratively published by prisoner support groups for prisoners worldwide to report on their struggles and acts of resistance from behind bars. All submissions must be **RECEIVED by January 1st or July 1st** and be in compliance with the guidelines below. Please note that we retain the right as editors to alter submissions for grammatical and content-related issues. Prison Action News is just one part of the multi-faceted Prison Abolition movement.

History:

The idea for Prison Action News came out of the 2007 Anarchist Black Cross (ABC) Network gathering. We wanted to create a venue for prisoners to share updates of their activities, similar to the updates we wrote in the network newsletter. Recognizing that there is far too much activity occurring in prisons to put in our quarterly newsletter, we decided to create a new publication. As people on the outside, we can facilitate this dialog of prison resistance, and help our comrades stay informed about the inspiring actions others are taking. We accept submissions from prisoners and prison groups worldwide, and bilingual writing. With your help this newsletter will be a success- if you know of resistance taking place that is not represented here, please send us a submission, and spread the word!

Please send SUBMISSIONS to:

Prison Action News:

PO Box 832 Watertown, MA 02472 prisonactionnews@riseup.net

Send SUBSCRIPTION REQUESTS or ADDRESS CHANGES to:

Boston ABC PO Box 230182 Boston MA 02123 bostonabc@riseup.net

OR

Central Texas ABC PO Box 7187 Austin TX 78713 twitchon@hotmail.com

Guidelines

1. An update must not exceed 500 words.
2. We will not accept submissions with racist, sexist, homophobic, or otherwise oppressive language.
3. An update may be a report on resistance activities of individual prisoners or prison groups (this can include, but is not limited to, radical book groups, hunger strike, general strike, letter writing campaigns, etc.).
4. A report should not be a political essay or a report on prison conditions, rather, the response and resistance to these conditions.
5. PAN accepts entries of artwork and illustrations.
6. One submission per group, per prison, per newsletter.
7. We will not report on gang activity.
8. We accept bilingual entries (when one language is English), as well as Spanish entries!
9. Entries may be submitted for publication with the name and contact information of the writer, or anonymously, to protect their identity.

LAYOUT: JAKE CARMAN

EDITING: THE PAN EDITORIAL COLLECTIVE, AND
MEMBERS OF BOSTON ABC AND CENTRAL TX ABC

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Disclaimer:

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Artists Wanted!

As you will see, there is no
prisoner artwork in this issue of Prison Action News!
We know there are many talented artists out there,
and we rely on you to make this newsletter attractive.
Spread the word, and submit your artwork to the next issue!

NEW PRISON GROUPS AND PROGRAMS

Youngstown, OH

March 2012

Revolutionary Greetings:

I represent a small group consisting of several brothers of various backgrounds. Some of us were career criminals, others mere first-time offenders, or, in some instances, wrongly convicted. Whatever our differences, each of us recognize that we are the resulting product of America's culture of death.

Imprisoned, we realized that we faced either of two choices. One, to take part in the "Death-Tank" politics that are designed to perpetually pit gang against gang, white against Latino against Black, or creating individualism, where each strives to deprive others of what we barely have (after being thoroughly, inhumanely stripped of most all that resembles humanity by the system). They also foster dormancy, contentment and pacification that amounts to acceptance of the above; all to the benefit of a system that thrives only because of our disunity. The second of two choices (the one we have chosen) is to educate ourselves as to the reasons that such a "Death Culture" first exists, second who created it, and last, how we can defeat it. We have chosen the second option. This is the one that is more dangerous to the upkeep of the system because our objective is to liberate the minds that are otherwise held captive.

We became tired of witnessing the conditions of confinement we were partaking in, and turning a blind eye to the conditions leading up to and including confinement, and the feeling of help/hopelessness and defeat of these conditions and concluded that through disunity we have remained disorganized, disregarded, defeated and unable to change.

Out of the desire to educate ourselves came also the will to uplift. So we began to voice change and act out change by altering what influenced our thinking. Now we want to assist in changing the spirit-defeating conditions that exist in our culture that are often accelerated by confinement. We want to assist in awakening others who are confined, to show them that there exists alternatives to Amerika's "Death Culture." We want to assist in awakening our families and society as a whole to the injustices we face daily on the inside of these mental, spiritual, and physical death camps. We also want to join with those who are currently awakening the masses to the torrential injustices committed against the masses by the monied and powerful elite. And we seek to assist and support the Occupy Movement as well as all people-struggles to overthrow capitalism, hegemony, imperialism, and white-supremacist-depravation-institutions wherever we find them, until they no longer exist.

Having now learned of the conditions, we find ourselves indebted to the victims of crime, freedom fighters of the past, political prisoners, prisoners of war, and the wrongly convicted. It is for them and countless ancestors who pushed, fought, suffered and died, as well as the masses of the present who blindly follow and especially to the youth of today who are being miseducated in the death tanks of the public (so-called) school system; we carry the duty of the fight to liberate the minds and assist in the total destruction of the system that designs Amerika's Death Culture.

Due to our being incarcerated we find our resources extremely limited. Yet we remain intent on organizing study groups, amassing a library of liberating material on philosophy, economics, history, archaeology, anthropology, and even cosmology. We are looking for the most critical works on revolution, communism, radicalism, communalism, and the many people struggles that have taken place all over the globe. Those studies that reveal the truth, not the Western propagandized view. These can include books, periodicals, pamphlets, zines, etc.

Some other assistance we may need includes typing, making zines, copying, downloads, research, statistic searches, blogging, website checking/updating, and book donations. We are artists, poets, analytic-critics, deep writers/thinkers looking forward to not only having your assistance but assisting you as well in any way we may be able to. May we come up with solutions and implement methods for change together.

Revolutionary greetings, comrades!

I'm sad to report that approximately a week and a half ago on or around July 31, 2012, there was a race riot on the Estelle Unit which is located in Huntsville, TX. One Mexican inmate was killed. Racial tensions between Mexican and African-American inmates have been escalating for months. Prison administrators have implemented a special security lockdown and have brought in officers from all over the region to shake-down the entire facility. TDCJ prison administrators have lost faith in the officers actually assigned to Estelle Unit. It has been well established that officers who work at Estelle Unit have racist attitudes and instead of being part of the solution, in many cases they have been the source of the race problem by instigating enmity and hatred between Mexican and African-American inmates. The New Afrikan Black Panther Party on Estelle Unit is in the beginning steps of implementing a new initiative for peace called STLU-FP: Street Tribe Leaders United for Peace. We intend on inviting all street tribe and prison tribe leaders to the table of brotherhood in order to establish dialogue that will lead to peace and understanding among the various black, brown, and white groups that exist. It has been my experience that the key to existing in this environment together is mutual respect. Yo tengo mucho respeto para mis Mexicanos hermanos, cavachos, morenos- todos! Dios te bendiga! I encourage all to stop the violence and increase the peace so we can focus our energies on the oppressor and not each other.

As a result of the riot we were placed on lock-down for 10 days and during that time the Administration saw to it that we were fed the most anorexic brown bag meals "Johnnies" I have ever seen. The meals were pathetic and it became clear the prisoncrats were implementing a draconian behavior modification tactic.

Recently, prison officials have instilled a new dayroom policy. As you may know, dayroom time is spent outside the cell in a large Rec room with TV, table games, benches, etc. Dayroom time breaks the monotony of spending numerous hours in the cell with your celly. From now on, the dayrooms on Estelle Unit will be closed from 9am-11am and 3pm-6pm daily. I cannot even begin to describe how oppressive and degrading this new control tactic is. Prisoncrats in Texas force prisoners to work for 8-12 hours a day- no pay, no benefits! There is no air-conditioning in these small cells in general population in Estelle Unit. Furthermore, anyone who has done time knows one of the keys to getting along with our cellmate is making sure both of you get some "cell-time." There have been ten murders in Texas prisons this year, triple last year's number!! Most of these murders were "in-cell" altercations between cell-mates. This fact seems to have been lost on the prisoncrats, or has it?

It is my firm belief that the sole purpose of this new regulation is to oppress and antagonize prisoners until they are broken, or explode in frustration on each other. Prisoners must grieve this policy. Moreover, it is time for some revolutionary activism! A peaceful sit-in. No adequate dayroom time, no work! Conditions will

only improve in Texas when prisoners make sacrifices and see clearly that the real enemy wears civilian clothes and Confederate Army Grey Uniforms!

Dare to struggle, dare to win

All power to the people,

Comrade Malik N.A.B.P.P. (P.C.)

Keith H. Washington

TDC#1487958

Estelle Unit (HS)

264 FM 3478

Huntsville, TX 77320

Jefferson City, MO**December 2012**

Greetings comrades. My name is Comrade Randy Teter. I am writing this submission so all the comrades will know I am putting out a radical paper which is free to all who request it. This paper is called International Liberation and is for everyone in the struggle to be able to enjoy the freedom of speech and press without some government controlled newspaper saying 'we can't print that because it will upset the government.' You can place penpal ads in here for free, submit articles of what's going on inside prisons or out in society. You can submit political essays or whatever you feel is a good article.

My fellow comrades, men and women, International Liberation (IL) will only turn out how we, together, make it turn out. If nothing gets submitted, the IL will become a bust. It is for the people by the people. If it can be printed in a magazine or newspaper like all kinds of ads or articles then most definitely it can be printed in IL. Up to 500 words per ad. I also have other publications free of charge for the people. Just request the catalog. I am also looking to trade publications with others. Please note, I am a prisoner. If you're in a federal prison or you cannot receive mail from other prisons you will need to provide a third party to which I can mail publications. I can receive mail from anyone directly except from federal prisons. All my publications are handwritten until I can find volunteers to help. United we win, divided we die. Submissions for IL must be received by the 15th of each month, so it can be sent out on the 1st of each month. If you do not want your name or contact information submitted please let me know.

In solidarity,

Com. Randy Teter 1028240

JCCC

8200 No More Victims Rd.

Jefferson City, MO 65101

PRISON GROUPS UPDATES

N.A.B.P.P. - Prison Chapter December 2012

The New Afrikan Black Panther Party- Prison Chapter (N.A.B.P.P.-PC) was founded in 2005 as a faction within the Black Brigade (now the New Afrikan Service Org.). It is based on continuing the legacy of the original Black Panther Party and its prison chapter, founded by George Jackson.

The Minister of Defense, Kevin Rashid Johnson, has put forward a call for the formation of a Redfist Alliance (RFA) by the members of the various street and prison tribes as part of the United Panther Movement. RFA would be based on each tribe retaining its allegiance but all acting together when there is consensus to serve the people. This strategy of the United Panther Movement is to transform the “slave pens of oppression” into “schools of liberation” and the oppressed communities into base areas of cultural, social, and political revolution in the context of building a worldwide united front against capitalist imperialism. The Panther style is to combine serving the people survival programs and building community-based peoples’ power with community agitation, education and organizing. We also seek to build Ghetto 2 Ghetto intercommunalism. Capitalist imperialism is a dying system in a downward spiral of economic and political crisis, far from steering a bright future it is dragging humanity down. Most of all the people are at the bottom. Sooner or later, it will be swept aside by the masses of people, but sooner is better.

The longer it takes the more people will suffer. The people who can do the most to hurry things along are the people here inside the capitalist-imperialist super-power. As Mao pointed out, capitalism arose with the trade in Negroes and it will fail with the complete emancipation of the Black people. This is its weakest link, and that is why they’ve given us a Black president at this juncture to promote false hope and to buy time. Conditions are worse now than they were 40 years ago for the black and other oppressed masses. In that time it has been an eight-fold increase in the prison population and this will double again in the next few years. It’s the “New Slavery.” It reflects the reality that there is a growing mass of poor people. Capitalist imperialism can no longer profitably exploit us wage workers. This downwardly mobile mass is the constitution to “Pantherism.” The only way up is through rising. A successful uprising of the masses takes a lot of preparation. We have to create a situation for dual political powers in the oppressed communities. We have to turn the ghettos into revolutionary political base areas and strongholds of peoples power. As Sun Tzu taught: “Battles and wars are won or lost before they are fought.”

If you are interested in joining us, please write to or contact:

The N.A.B.P.P.- PC
PO Box 4362
Allentown, PA 18105
C/O Tom Big Warrior and M.O.D. Kevin “Rashid” Johnson/Chair Shaka Zulu

Request our info on our UPM, RFA, STP strategies and WPO, NASO- BPOC, RHWS Arms and newsletters, “Dare to struggle-Dare to win.” Communicate to educate to liberate.

Clenched fist salute
All power to the people
Comrade Optimus Prime
Oliver E. Lister II
NABPP-NASO-PC

Still Standing Up for the Struggle December 2012

Salute to all of my brothers and sisters living through and standing up in the struggle. My name is Yasin F. Rodriquez, but many know me as Sayso (see “Standing up for the struggle, PAN Vol 5.2, Page 7). I am the founder and chairman of F.A.M. (Forefront Anarchist Movement). We stand tall- by any means necessary- against oppression, injustice, inhumanity, corruptness, so-called government, and the likes.

Many of you have reached out to me and I thank you. All missives received with a revolutionary heart and truly open mind. Others wrote to staff at the F.A.M.Philadelphia offices. Most of you received responses, but others haven’t. For those who still haven’t received a response, please be patient. Our staff is hard at work and there also have been recent events that forced delays. Someone will reply soon.

Recently some of our comrades got into a conflict against a unit that represents the so-called government. For some reason this major incident was kept off record. We were forced to shut down our Philadelphia offices. Do not send any correspondences to the Philly address. We wish for all and any letters, essays, etc. to be sent to our Rhode Island offices. Keep up your resistance. Our fight continues. Stay strong and true to our cause, our goals. I salute you all and send you my revolutionary strength and love.

To contact me directly, write to:
Yasin F. Rodriquez HG 3130
PO Box A
Cresson, PA 16699

If you’re incarcerated and would like to contact me or receive info, write to:
F.A.M.
Attn: Yasin F. Rodriquez
725 Branch Ave #335
Providence, RI 02904

THE ALMIGHTY PEN AND PAPER: GRIEVANCES AND LEGAL WORK

De'Ja'Vu

June 2012

On or about July 1, 2002, then Executive Director, Gary Johnson, petitioned Honorable Justice William Wayne Justice to remove the Texas Department of Criminal Justice (TDCJ) from the Federal oversight of the courts, instituted by the class-action filed by the inmates housed under the care, custody and control of TDCJ. The Executive Director claimed that TDCJ has complied with and brought its penal institutions up to Federal standards, and as such, should be removed from federal monitoring. That era was dubbed the Ruiz case.

I am not privy to any personal knowledge as to what the conditions were that sparked the Ruiz case; but the conditions on the William G. McConnell Unit seem to emulate those conditions which I have read about that Honorable Justice deemed inhumane and unconstitutional. Conditions such as:

1. Working offenders without feeding them a hot or calorie-appropriate meal;
2. Continuous understaffing of institutions which results in inmate-inmate assaults, no outside recreation, no Protestant Sunday service, and continuant feeding of johnnies all three meals;
3. Failing to provide medical attention;
4. Working institutional jobs with no compensation;
5. Failing to provide offenders any redress process to complain of staff assaults or staff misconduct; and
6. Failing to provide adequate disciplinary process which is akin to a kangaroo court, the offender has no defense.

Over a span of one year, I have been assigned to the William G. McConnell Unit, Bee County, Beeville, Texas with an aggravated life sentence and have endured six of the non-exhaustive list described above in some form or fashion. It seems to me that the written policies were written to pacify Honorable Justice and encourage him to release his Federal restraints. Yet, TDCJ and its agents laugh at the policies published and implemented and do not yield to its own instructions.

Food for thought- how is it the McConnell Unit has enough security to turn inmates out to work in the garment factory to make products that TDCJ uses for profit, to turn out inmates for school/educational programs TDCJ uses to secure grants from the Federal government, to the kitchen to make johnnies while the officers eat hot meals prepared by inmates they do not have enough security to watch, or to the laundry to wash and press the officers clothes every day, but exchange inmate workers' clothes only three days out of the week? Breakfast has become extinct, except

for maybe 1 or 3 times a month, to sometimes never. Peanut butter sandwiches have been the main source of nutrients for all three meals.

But, I said that to say this. In the words of a famous TDCJ Poetess "If it ain't right, get it right." (Robertson Unit's own Mrs. "Bobo" Isaac). A massive overhaul needs to take place. All of you gang members need to stop fighting one another and unite for your rights. A whole new Ruiz revolution needs to take place for this generation of inmates. I am not saying that you stop turning out for your job assignment, although that may be necessary. My suggestion is, utilize the grievance procedures and the ombudsman office, then utilize the court system. Flood Warden L. Davis with grievances. Those that are able, have your family and friends call the unit, John Whitmire, State Senator; Elizabeth Burns, TDCJ Office of Ombudsman, and Brad Livingston, TDCJ Executive Director to inquire as to why this unit has subjected their son, nephew, father and/or friend to a grave mistreatment and have impeded upon their rights and privileges for over a year? That can be the start of something beautiful, wouldn't you say?

Addresses: TDCJ Office of Ombudsman, Elizabeth Burns, PO Box 99, Huntsville, TX 77342, 936-437-2101, ombudsman@tdcj.state.tx.us

Executive Director, Brad Livingston, PO Box 99, Huntsville, TX 77342, 936-437-8035

Texas Senator, John Whitmire, Capital Station, PO Box 12068, Austin TX 78711

The above actions formulate the beginning of the McConnell Unit Inmate's Class-action suit. But, every McConnell Unit inmate resident must get concerned about themselves and their brothers, regardless of race or affiliation. A change must come before we end up in a de-ja-vu.

Follow your grievance process through to the step 2. If able, send a copy or original with their response to Central Texas ABC c/o De'Ja'Vu PO Box 7187 Austin TX 78713 for evaluation and researching of the proper cause of actions that may be sought. While initiating your letter-writing campaign, it would be wise to route a letter to the Special Litigation Unit, Civil Rights Bureau, U.S. Dept of Justice, 950 Pennsylvania Ave NW, Patrick Henry Building, RM 5028, Washington, DC 20530 c/o McConnell Unit Inmates.

The United State Department of Justice (DOJ) has the authority to investigate certain state and local institutions including jails, prisons, and juvenile detention facilities for unconstitutional conditions. The DOJ will only investigate allegations of "systematic" abuse- problems that are experienced by many prisoners. The McConnell Unit is a 2900 man unit and I encourage every inmate on the McConnell Unit to write to the DOJ explaining the widespread constitutional abuses the McConnell Unit suffers from. Try to be as specific and clear as possible- your letter should include your name, prisoner ID number, how long your sentence is and how much of it you have served, and a description of what happened or the condition you believe to be unconstitutional. When you talk about what happened, be sure to include where relevant, how many times the abuse happened, the names of the people involved, and whether the abuse has happened to other inmates.

The DOJ conducts investigations that derive from four major areas: 1. Conditions of institutional confinement; 2. Law enforcement misconduct; 3. Access to reproductive health facilities and places of religious worship and 4. Protection of institutionalized persons' religious exercise rights. The above DOJ information is reprinted in part by permission from the Columbia Human Rights Law Review, a Jailhouse Lawyer's Manual, sixth edition, at page 65, copyright 2005.

Mr. Jim Hamilton Jr.
3001 S. Emily Dr.
Beeville, TX 78102
ML-TDCJ #1079035

Cameron, MO December 2012

I am writing this article to inform PAN readers of a recent lawsuit filed by the Western Missouri ACLU on behalf of Bobbie Lane, owner of Caged Potential Publishing Company who mailed seven copies of a book to seven guys here at CRCC and none of them were delivered to the inmates to whom they were mailed and Caged Potential Publishing Company was not notified of the non-delivery by prison officials. The lead attorney in this case is Doug Bonney, Chief Counsel and Legal Director of the Western Missouri ACLU 3601 Main St. Kansas City MO 64111. Ph# 816-756-3113. This is important because anyone who has sent a book, newsletter, or even a simple letter and it was withheld for any reason and the sender was not notified of its non-delivery are urged to contact the above attorney to join in on this class action lawsuit (Lane v. Lombardi). Prison officials have been getting stricter and stricter with their mailroom rules and it's time we prisoners push back by exercising our first and 14th amendment rights which few of us rarely do. The last issue of PAN was censored, citing "it may pose a threat to safety and security of the institution" even though PAN is diligent in ensuring no questionable articles get printed. I'm sure this censorship was done because articles were printed in this Vol 5.2 August 2012 issue criticizing mailroom staff and mail policies by me and others. I am again urging PAN staff to contact Mr. Doug Bonney, Attorney at Law to join this class action lawsuit because I have already been informed by PAN staff that you were not notified of non-delivery of the Vol. 5.2 August 2012 issue of PAN. There is sure to be a big payout in the settlement of this lawsuit and I know PAN can use these funds for the cause!

In solidarity we fight,

Troy L. Fenton #517163
Crossroads Correctional Center
1115 E. Pence Rd. 1A-203
Cameron, MO 64429-8804

Seward, AK December 2012

Hi, my name is Donny and I undoubtedly, just like so many other men and women in this country, was wrongly convicted at the hands of overzealous prosecution and ineffective trial counsel. In 2003, before I was sentenced, we were all interviewed by some psychiatrist. This particular psychiatrist, Dr. Stallman, concluded that I was severely depressed! Upon entering our long-term facility, I was placed on anti-depressant after anti-depressant. Nothing worked. When I started asking for individualized counseling instead, this doctor changed his tune to Anti-Social Personality Disorder and thus began telling me "Oh, there's not treatment for that" and since then has left me hung out to dry with no help. I filed an administrative appeal after exhausting all remedies. The state, as you know, has tried every trick in the book to discard this. The judge in case no. #1JU.11.900.ci Grossmann V. Alaska/DOC thus far as recognized that "something" is mighty flawed with the DOC system in not willing to help a prisoner with a so-called ASD mental illness. I told this judge that I firmly believed that all of DOC throughout the country was using this ASD business as a flat scam and neglect. The outcome is pending. I'll relay that in time. However, anyone wishing to respond to this can write me at this address.

Wm Donny Grossmann 266937
Spring Creek Correctional Center
3600 Bette Cato
Seward, AK 99664

Tehachapi, CA August 2012

Dear PAN:

After reading my very first issue from you, I was like, "YES!" And here I was, for years, in battles with the system, believing "Am I the only dang one, doing all I can, to fight these beasts, cruel- criminal and corruptness?" I mean, I know others file grievances and complaints, and I even like the hunger strikes pulled off, but it can't stop there. It must continue in ALL avenues. Like it was said in the August issue by Shawn L. Perrot, "Pass along all information, tips and tricks, on what you've found that actually works." Such as his perfect point, on cell phones. Maybe those lucky few who do get cellphones into prisons can contact outside help and inform social media of what they can't see or hear in here. One of my best worked actions against cruel-criminal and corruptness is my constant writing to the California Legislatures Office non-stop. I was at High Desert State Prison, where officers were very abusive (physically and verbally) and unprofessional. So I passed around this address to every inmate I could: "Califor-

nia Legislature, Senate Office of Research, Mr. M. Gladstone- Deputy Director, 1020 N. Street Suite #200, Sacramento, CA 95814.” Within a month, I got a letter from Mr. Gladstone saying, “We received a great number of complaints about your prison and are aware that you provided our address to them. We will be visiting you soon.” I couldn’t believe that after 2 1/2 years of constant writing them with no reply, they finally answered. My visit with them went well, and High Desert started to slow their acts down. But it doesn’t stop there. It must keep going! We’ve got to write mayors, governors, senators, and anyone else that will hear us. And it can’t be petty complaints. It must be hard, solid, cruel-criminal and corrupt issues. And when you feel that your one letter isn’t enough, copy the addresses that you wrote to and pass them around to solid people who you trust will actually write and complain about the same issues. It works. You may suffer retaliations, but once you prove to a few that it works, they’ll show others that it works. And the seed will grow. No matter what tip, trick, or positive move you do, pass it along. It all works. Stay strong, be positive, never give up the fight. For those wishing to contact me, inmates cannot write direct. You may go through a third party. If so, thank you and may great spirit be with us all.

In solidarity, your brother,

“Warrior Medicine”
G. Hernandez #H07444
CCI / 4B-2A-103L
PO Box 1906 (SHU)
Tehachapi, CA 93581

Tennessee Colony, TX

December 2012

I am still an indigent Texas state prisoner, and still a New Afrikan Independence Movement and Prison Reform Movement activist. Since my update in PAN Vol 5 #2, I have submitted 14 formal grievances.

One concerned a C.O. playing games with my ID card, which she supposedly took to get my ID number and identify me. Although cameras on my wing, feeding pictures to digital recording equipment, presumably photographed her taking my ID, and the prisoner janitor returning it to me over 4 1/2 hours later, she was allowed to get away with her claim that she gave it back to me in a timely manner. However, the I-127 (Unit Level, also called a Step I) grievance response stated there was “no evidence of staff misconduct.” The I-128 (regional level, a.k.a. “Step II” and the highest level available) response stated there was “insufficient evidence.” I guess a picture doesn’t beat an officer’s words.

One concerned not being able to get a response from the prison system’s medical division to the question of whether a prisoner would be charged the \$100 per year health services fee if he/she submitted a request for health information to be put in his/her medical record, and medical staff decided he/she should be seen because of that information. The state policy is that prisoners must pay \$100 per year if they request to be seen about a new medical problem. So my intention was to get medical staff to write in my record symptoms that I would report, making them liable if they failed to act on that information that implied a worsening medical problem. Since I would not have requested to be seen, I should not be charged. The prison system/TDCJ-CID’s health services division refused to respond to the question, until the grievance, and the response I got to the I-128 amounted to “maybe.” (In pertinent part, “According to CMHC policy E-37.1, an offender complaining of clinical signs of symptoms such as chest pains or a bump growing on a leg must be seen by a licensed healthcare worker within 72 hours of receipt of the sick call request. So yes, you would be laid in, and possibly assessed the medical fee.”)

One concerned the official responsible for the systemwide distribution of information about correspondence denials refusing to give me the names of officials who upheld a denial, to me, of correspondence, so that I couldn’t name them in a suit. The I-128 response admitted that said official should have given me that info, and told me to write the same address from which I had received no response, again. Although I didn’t write again, I received the names about two weeks after the I-128 response was issued.

Four concerned library access. Two others were disciplinary appeals. Three concerned improper actions by the law library supervisor. One of those actions was his telling me an envelope that I had received through the mail and was using to carry some legal work was contraband, because it had fibers in it. I actually grieved the mailroom’s refusal to put out a notice saying such envelopes were contraband. Both the I-127 and I-128 responses said the law library supervisor knew better.

One grievance concerned the unit giving us only three bars of soap per week due to low water supply levels. I argued that there must be a system-wide minimum of more than three, since we usually got one each day. The issue was not addressed. (“Once the water restriction is filled the unit will resume showers on a daily basis. No corrective action is warranted.”)

The fourteenth concerned an Assistant Warden giving me erroneous legal advice in a grievance response (“Your next option would be to file a 1983 civil suit through the law library.”)

I won my appeal (#D2-11-002-54-CV, in the 2nd court of appeals of Texas) concerning my unit in the 89th District Court of Texas, about 29 publication denials and colored paper denials. Now it’s back in the district court.

In struggle,
Umoya KwaZulu
a.k.a. Richard T. Ayers #468361
1391 FM 3328 Beto Unit
Tennessee Colony, TX 75880

New York State Is Sued Over Use of Isolation in Its Prisons December 2012

By MOSI SECRET- NY Times

Excessive tobacco. Unauthorized jewelry. An untidy cell. Those were among the nonviolent infractions by prisoners in New York State that led to extended stays in solitary confinement, a widespread punishment for prison offenses, according to a lawsuit the New York Civil Liberties Union filed on Thursday.

The suit, filed in Federal District Court in Manhattan, names Brian Fischer, the state's corrections commissioner, and several other prison officials. It challenges policies that give corrections officers wide discretion in imposing isolation and says a disproportionate number of black prisoners are punished. The organization also says the isolation causes physiological and psychological damage.

The plaintiff, Leroy Peoples, spent two periods in isolation, totaling more than two years. One was for possessing dietary supplement pills and the other was for filing false liens against members of the Queens district attorney's office who handled his prosecution, the suit says.

"Mr. Peoples's experience in S.H.U. was psychological torture," the suit says, referring to the segregated housing unit. The barren, elevator-size isolation cells cut off the inmates from almost all human contact. They leave for no more than an hour a day to exercise in concrete pens. Sometimes two inmates are put in the tiny cells together.

Mr. Peoples, who is from Jamaica, Queens, was convicted of two first-degree rapes in 2005 and sentenced to 13 to 16 years in prison. He is currently at the Attica state prison.

A spokesman for the Corrections Department declined to respond to the allegations, citing a policy against discussing current litigation. In October, Commissioner Fischer released a statement in response to the N.Y.C.L.U. report, "Boxed In," whose findings served as the foundation for the lawsuit.

"If we fail to protect everyone in our facilities, we fail to maintain the task that has been placed in our trust," Mr. Fischer said. "The use of disciplinary segregation is important to the overall well-being of any of our prisons."

The suit is one in a string around the country seeking to curb the use of isolation cells as cruel and unusual. A class-action suit was filed on behalf of prisoners who spent 10 years or more in isolation at Pelican Bay State Prison in California. Mississippi reduced the use of solitary cells after a lawsuit by the American Civil Liberties Union.

A spokesman for the New York department said that a review of the use of solitary cells was continuing.

A version of this article appeared in print on December 7, 2012, on page A36 of the New York edition with the headline: New York State Is Sued Over Use of Isolation in Its Prisons.

http://www.nytimes.com/2012/12/07/nyregion/new-york-state-sued-over-use-of-isolation-in-prisons.html?_r=0

NYACLU press release:

<http://www.nyclu.org/news/nyclu-lawsuit-challenges-new-york-states-use-of-solitary-confinement>

Delano, CA

December 2012

Greetings comrades,

We here at the North Kern State Prison located in Delano, CA have filed a group 602 about our Ad Seg placement for long lengths of time and no validation packet presented to show us that we are prison security threat group members. It seems a lot of our fascist captors have been moved up in their ranks and relocated to other institutions, but not before a lot of us went to a classification committee and have been released back into population again. About 20 of us from all ethnicities, who have been buried alive in these concrete tombs for over a year are now a part of the hostility-free general population yard, and in solidarity with others of like mind have started exercising together, and have group study sessions in our dayroom area. The importance of mass organized struggle is the unity of the people, and in order for us to obtain our liberation from these confines, the unity cannot be broken. We thank all our support circles out there who brought our cause world wide exposure through the media and web in order for the CDC to start taking a look at our comrades who are still being buried alive in the Pelican Bay, Cocoran, and Tehachapi SHU's. Thanks all you collectives for your strong support of letter writing, visits, and complaints to the CDC and to all you lawyers out there who still continue to fight and file motions with these civil cases. You all know who you are and there's too many of you to name. This is just a small battle won, and the war to end oppression is far from over.

One love, one struggle

Comrade T, a servant of the people...

We prisoners of the H.H. Coffield Plantation of Masjid Ar-Rabbiyyun implore our political brothers and sisters of faith in the din of Islam to support us Muslims throughout the Texas Department of Criminal Justice of Institutional Division (TDCJ-ID).

Since 1977 in Brown v. Beto, Civil Action #4:59-CV-00074 United States Southern District Court of Houston, Texas Case assigned before Honorable Judge “Sim Lake” Cause: 28:1343, we Muslims filed a class action lawsuit against TDCJ-ID of depriving us prisoners of our United States Constitutional rights by depriving us Muslims to practice our religious faith in the state of Texas. The Federal Court ruled in our favor in 1977, issuing a Court Order to TDCJ-ID to acknowledge the Muslim religion by allowing us Muslims to attend Jummah Service, Taleem, Arabic study, Ramadan, and the Eid. The Court Order also issued TDCJ-ID to hire more Muslim Chaplains to be able to facilitate our services. At the time of the lawsuit there were not a lot of Muslims and there were around 12 prison units within TDCJ-ID and the court order allowed prisoners to facilitate the services by acting as clergies comports the services. This has been going on since the 1977 court order until recently.

Since the 1977 court order, the prison population of Muslims has increased tremendously throughout TDCJ-ID from 12 plantations to 112 plantations and Islam is the second largest religion in TDCJ-ID. The prison officials have all of a sudden posted a written rule to deprive us Muslims of our services saying we do not have to have a Free World Clergy to comport our services. The sole reason for the change is due to another religious faith filing a lawsuit stating that Muslims don’t have to have a clergy sitting in on their services. Since 1977 we Muslims have conducted our own services due to TDCJ prison officials’ reluctance to hire Muslim chaplains out of religious discrimination violations of Equal Opportunity Employment. The court clearly states that TDCJ-ID shall hire Muslim chaplains as the Muslims multiply through TDCJ. Since 1977, TDCJ-ID has only hired four Muslim chaplains to cover 112 units!!! They have a Christian chaplain at every one of the 112 plantations. At this present moment here at the H.H. Coffield Plantation is an opening for a chaplain, but they refuse to hire a Muslim.

The lawsuit is back in court and the state is asking the court to determine the Class Action Lawsuit Brown V. Beto. The head Muslim chaplain that represents the Muslims throughout the TDCJ is Chaplain Shabazz. He’s a sell-out and he has been the main reason of depriving Muslim chaplains to be hired within TDCJ-ID. “You cannot expect a shark to represent a fish!” Since we filed the lawsuit he has done nothing but help the state to circumvent the Muslims from filing lawsuits against prison officials in violation of our freedom of religion. He works for the state and his main goal is to allow them to deprive us of our rights that we prisoners fought hard for and died for within TDCJ-ID to have Islam established.

We are imploring upon the mass society to protest Director Brad Livingston and the Chaplain Director Bill Pierce by ringing their phones off the hooks and asking them why they haven’t hired more Muslim chaplains since the 1977 court order,

only hiring 4 Muslim chaplains to cover 112 throughout the state of Texas. Chaplain Pierce: 1060 Highway 190 E, Huntsville TX 77340, Ph. 936-437-4981 Fax 936-437-7191. Brad Livingston, PO Box 99, Huntsville, TX 77342. Ph. 936-437-2101, Fax. 936-437-2123.

We ask the public to notify the attorney that represents us in the class action lawsuit Brown v. Beto, asking them what’s the status in the case by contacting them:

Mr. Gerald M. Birnberg, Attorney at Law, Williams, Birnberg & Anderson LLP, 2000 Bering, Ste. 909, Houston, TX 77057-3746, 713-981-9595/713-981-8670

We have filed dozens of grievances on the matter and they claim that they haven’t taken our services, which is a lie! I am imploring all my political leaders, Imam, family, friends, brothers and sisters out there in the political prison (society) to protest the deprivation us prisoners of our freedom of religion. They violated the 1977 court order by not hiring more Muslim chaplains to conduct our services. They can’t say they didn’t have enough time to hire them and they can’t say they have placed openings to hire them either. This shows their quintessential racist bias against the Muslim faith in not hiring enough Muslim chaplains after 35 years!!!

If you have any questions, please contact me at my address below. We are requesting all Muslim communities throughout TDCJ-ID to file your grievances exhausting our remedies, then we will bring another class action lawsuit against the TDCJ-ID. The struggle forever forwards and backwards never. We shall never surrender while we are a contender!! I send my condolences out to all my brothers and sisters, Allah says the believers will eventually win through and our reliance is on Allah because he is Akbar!!!

Endless struggle 4-life!!

Kaazim Abul ‘Umar #428622

(f/k/a Wesley L. Pittman)

H.H. Coffield Unit

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wesley.pittman@rocketmail.com

Dir. Legal Team and Dir. Dawah Committee



*Someone tearing
down a prison
- Oz, age 4*

SOLIDARITY: WORKING ACROSS THE BARS

How Private Prisons Profit From the Criminalization of Immigrants December 2012

by Laura Carlsen

How a nation uses its power to deny a person's freedom has always been a critical measure of authoritarian rule. Massive incarceration based on race, ethnic origin or nationality, political beliefs, class, sexual orientation, age or other inherent characteristics is a form of tyranny. Yet few people realize that this is happening on an enormous scale here, in the United States of America. Immigrants make up the latest market for a booming private prison industry.

The U.S. locks up the highest percentage of its population in the world--- 730 per 100,000--- nearly two and a half million people. Although it has only 5% of the population, 25% of the world's prison population is behind bars in the U.S. It wasn't always like this. This huge growth in the prison population has taken place just over the past two decades, when the imprisonment rate per capita surged by 45%.

It's not that the U.S. experienced a major crime wave. The opposite is true. Crime and especially violent crime steadily decreased over the same period. Two factors--the lock-up of mostly poor, black or Latino recreational drug users and of immigrants--now account for more than 80% of people behind bars in our country. Draconian drug prohibitionist policies and new laws that criminalize undocumented immigrants have flooded the nation's prisons.

In other words, while actual behavior in society improved overall, the U.S. government broadened the criteria for depriving people of their most fundamental liberties. This wide net now traps more men, women and children than at any other time in history.

There's a reason for that.

For-Profit Prisons and the Criminalization of Immigrants

In the mid-eighties, the U.S. government began to outsource jailing people. The first contract, in 1984, went to Corrections Corporation of America, still the largest for-profit prison company in the country. Private prisons moved into communities left behind by the globalized economy. Heavily subsidized by taxpayer money even before receiving public contracts, they built thousands of cells throughout the country.

Then they had to fill those cells. How do you drum up business if you're a for-profit prison industry? By making sure there's a steady stream of prisoners. For

every human being sent behind their bars, CCA or the second giant in the industry GEO Group, make approximately \$122 a day, per head. CCA reported \$1.7 billion in gross revenue last year, nearly half from government contracts. That's a powerful incentive to lock people up. In recent years, the most effective strategy for "market expansion" in the private prison industry has been to criminalize immigrants.

Latinos, the New Prison Majority

A series of recent laws that have redefined undocumented immigration from an administrative infraction to a felony led to the creation of scores of migrant detention centers, built and run by the private prison industry. Operation Streamline, a policy begun in 2005, mandates that nearly all undocumented immigrants crossing the Southern border in certain areas be prosecuted through the federal criminal justice system.

A Grassroots Leadership report on Operation Streamline shows that federal districts along the Texas-Mexico border have spent more than \$1.2 billion on the criminal detention and incarceration of border-crossers since the program began in 2005, with more than 135,000 migrants criminally prosecuted in these two border districts under two sections of the federal code that make unauthorized entry and re-entry a crime. The report found a 2,722% increase in prosecutions for entry, and a 267% increase in prosecutions for re-entry, compared to corresponding data for 2002.

As a result, Latinos now make up the majority of people sent to federal prison for felony crimes, with sentencing for newly defined immigration felonies like illegal border crossing or aiding in border crossing accounting for the increase. While Latinos were 50.3% of those sentenced in 2011, they make up only 16% of the overall population. ICE now sends 400,000 immigrants a year to detention centers. Increased sentencing for non-violent immigration and drug offenses has also driven the number of women in prison up by 800 percent. The round-up of immigrants means that half of immigrant detainees spend time in prison compared to just a quarter a decade ago. This human bounty hunting shatters lives and families and costs taxpayers billions of dollars, much of it paid to the private prison industry.

Lobbying for Lock-up

It's not surprising that for-profit prison companies have lobbied hard in Congress to maintain their cash cows---the drug war and the criminalization of immigrants. The CCA 2010 Annual Report clearly states the need for criminalization to continue by warning its investors:

"The demand for our facilities could be adversely affected by the relaxation of enforcement efforts, leniency in conviction or parole standards and sentencing practices or through the decriminalization of certain activities that are currently proscribed by our criminal laws. For instance, any changes with respect to drugs and controlled substances or illegal immigration could affect the number of persons arrested, convicted and sentenced, thereby potentially reducing demand for correctional facilities to house them."(p.19)

The report notes that three federal governmental agencies accounted for 43% of total revenues in fiscal year 2010 (\$717.8 million)---the Bureau of Prisons (15%), Immigration and Customs Enforcement-ICE (12%) and the US Marshall's

Service (16%). It concludes, “We are dependent upon the governmental agencies with which we have contracts to provide inmates for our managed facilities.”

An AP story found that the private prison companies spent more than \$45 million in lobbying and campaigns in the last decade. According to a Justice Policy Institute report, CCA spent an average of \$900,000 a year on federal lobbying over the past decade. That figure doesn’t count state lobbying, where private prisons participate actively, or campaign contributions.

When Arizona passed SB1070 to increase police power to detain anyone suspected of not having immigration papers, 30 of the bill’s 36 legislative co-sponsors were found to have received significant campaign contributions from private prison companies.

A People’s Movement Against Private Prisons

Peter Cervantes-Gautschi, Director of Enlace, notes, “Of immigrants in the federal prison system, nearly half are in for things not even considered crimes six years ago.” He states that only 5% of immigrants behind bars are there for what would normally be considered a crime. He adds, “People who are in for re-entry aren’t criminals---these are people coming back to see their children, coming back to visit a sick relative. It’s creating a great deal of human suffering and causing huge problems in our communities and schools. Our families are being broken up by this ridiculous policy.”

Enlace, an organization that works for the rights of low-wage workers, coordinates the National Prison Divestment Campaign. Using a “follow-the-money” strategy for understanding and confronting the influence of the private prison industry, it built a coalition of more than 130 national, state and local organizations “to convince shareholders (individuals, banks, hedge funds, etc.) to divest their funds from the prison industry so that we can make an impact on the prison business and reduce the power of CCA and GEO to lobby for laws that imprison our communities.”

The coalition has already scored some big victories, including cancellation of a for-profit detention center in South Florida, divestment by the hedge fund Pershing Square and by the United Methodist Church, and the divestment of a third of its GEO holdings by Wells Fargo following a campaign against WF Banking on Immigrant Detention. Resident organizations have stopped detention center projects in communities from Georgia to Illinois.

Their message has been simple: “Stop funding incarceration for profit.” The coalition is gearing up for another National Day of Action on Dec. 13. This time the focus will be on members of Congress sitting on the budget committees. Constituents are calling on their representatives to discontinue life support to the for-profit prison industry and direct scarce public funds their communities’ basic needs and services.

Laura Carlsen is the Director of the CIP Americas Program:
<<http://www.cipamericas.org/>>./

DIRECT ACTION/NON-COMPLIANCE

Carson City, NV

December 2012

Greetings and solidarity, comrades!

My name is Lee Gerston, notoriously called “Lucky” (as in not so) across these United Fascist states. I have survived the Klanifornia gulag system as a die-hard Anti-Racist Anarchist and am currently in a northern Nevada medical (experimentation) yard as a political prisoner. An update on my struggle: One September 13th, 2012 Gestapo Bratch began performing “compliance” checks on all unit 2 bunks. He began removing the second blanket from each bed that had one. (In accordance with some mystery O.P. that only occurred after the incident.) Among the blankets stolen were those of six older men between 60 and 78, two of whom had stage five cancer and one with severe diabetes. I immediately began speaking out. “Solidarity!” I screamed. “Direct Action!” I declared. Soon I had nine brothers surrounding me ready to march. We went to the unit rotunda at 9:30am and sat down, right there on the dirty ass floor. We ignored the Gestapo Bratch’s yells and demanded the Lieutenant. We were ignored in turn. At 11:30 count they were forced to recognize us. The Lieutenant SS Officer Clark came and told us to lock down. I informed him surely we will, just as soon as the blankets were reissued to the elderly sick men who had them stolen by Gestapo Bratch. “Not happening,” he said. “We don’t respond or negotiate with attempted terrorist acts.” Don’t you just love how they go there every time. Well, you can guess how it played out. The goonies came in, covered us with pepper spray, forced us to “stop resisting” and hauled us to the hole. I was charged with organizing a work stoppage and threatening staff, which was ok. Unfortunately (sorry folks), every one of my compatriots rolled over for lighter disciplinary charges. Whether threats or bluffs were used, each one stated that I led and pressured others into participating. They each got three months. I got two years. Yup. Solidarity at its finest. But it’s ok, I can deal with it. Then just two weeks ago, on an “anonymous” tip, the homies storm into my house and “find” a knife. So I got another two years on that and when I told the disciplinary officer to fuck himself he gave me another charge for which I got six months, for a total of 4 1/2 years. They confiscated my much beloved ratty old copies of Antonio Gramsci’s Prison Notebooks and Frantz Fanon’s Wretched of the Earth. But no worries, comrades. I find it awesome that the reason they used for claiming the books was I could use them to apply revolutionary ideas against them. How awesome they so easily identify themselves with a fascist ideology.

Brothers and sisters, I will close with this: All this struggle simply keeps me alive. If they didn't keep trying to keep us down, we might fall complacent. Remember it is when we allow ourselves to bend with compromise that we begin to break. Comrades, do not bend!

With love, respect, and solidarity,

"Not So" Lucky
From behind the wire

Write me at:
Lee Gerston #1082998
NNCC
PO Box 7000
Carson City, NV 89702



The Grinch that Stole Christmas December 2012

Two months ago, Fairton got a new Captain and Warden who put out a memo stating any contraband in the common area results in taking of TV's, more results in taking of phones, then visits. Wine found in common areas resulted in TV's and phones being turned off in three cellblocks. The practice of all being punished for one created dissent at the prison.

On December 17, 2012 all prisoners boycotted the lockdown, and the prison locked down. Christmas meals are cornish hens and Christmas bags of candy and chips are issued. However, Grinch Shartle stole Christmas, and only tuna and bread were issued. Only one warm meal was issued during this lockdown.

Warden Shartle can be known as The Grinch who Stole Christmas to all the boys and girls waiting for a phone call from their father this Christmas. Maybe even New Years, depending on how the Grinch feels that day. Stay tuned to this station.

By Big John

*Image (opposite page)
Juvenile Water babies
Peter Pan in Kensington
Gardens -1905-1906*

Inmate pleads guilty, second charged, in Mississippi prison riot September 2012

By Holbrook Mohr
Posted September 7, 2012
In: The Commercial Appeal, TN

JACKSON — One inmate has pleaded guilty to participating in a deadly prison riot in Mississippi, while a second prisoner has been charged in the case. One guard was killed and 20 people were injured in the May 20 riot at the privately-run Adams County Correctional Facility in Natchez, which holds illegal immigrants convicted of crimes in the U.S.

Yoany Oriel Serrano-Bejarano was charged Tuesday. A complaint filed by an FBI agent says he assaulted a guard and helped other inmates climb onto the roof of a building where correction officer Catlin Carithers was beaten to death. The affidavit says prisoners took food service carts out of the dining hall and kitchen and stacked them on top of each other to climb onto the roof where Carithers was assaulted. "Serrano-Bejarano has been identified as one of the inmates who held the food carts so the inmates could access the roof," the complaint says.

The court documents also say Serrano-Bejarano assaulted a different guard, was seen with a prison guard's radio, and destroyed cameras and windows. Serrano-Bejarano is at least the second inmate charged in the case. Court records did not list an attorney for him.

Juan Lopez-Fuentes pleaded guilty to participating in the riot during a hearing Aug. 27 in U.S. District Court in Natchez. He faces up to 10 years in prison at sentencing on Nov. 19. Lopez-Fuentes was charged with leading a group of inmates who took hostages in one section of the prison. He forced one of the hostages to relay orders for tactical teams to drop their weapons and back off, according to court records in his case. Lopez-Fuentes was serving time for two previous felonies at the time and was facing deportation.

The FBI affidavit doesn't say why Serrano-Bejarano was being held in the prison, though it says he was released Aug. 28 and turned over to U.S. Immigration and Customs enforcement for deportation. The criminal charge will allow authorities to hold him pending the outcome of the case.

Court records say the prisoners were angry about their treatment the day the riot erupted.

The prison holds nearly 2,500 illegal immigrants, most of them convicted on charges of coming back to the U.S. after being deported. The prison is owned by Nashville-based Corrections Corp. of America, one of the nation's largest private prison companies.

The FBI says in court records that the riot was started by a group of Mexican inmates, known as Paisas, who were angry about what they considered poor food and medical care and disrespectful guards. Paisas are a loosely affiliated group within the prison, without ties to organized gangs, FBI spokeswoman Deborah Madden has said.

It took hours for authorities to control the riot, which grew to involve hundreds of inmates and caused an estimated \$1.3 million in damage.

Florence, AZ November 2012

Prisoners Jeremy Pinson and several others at ADX Florence, who are housed in indefinite solitary confinement, are on a hunger strike protesting the heinous conditions detailed more fully at: www.Supermaxlawsuit.com

Federal officials have vowed to Pinson and others that they will die before any hunger strike causes change. Supporters of reform may contact- Ed.Aro@aporter.com to support Pinson and others at ADX.

Sincerely,
On behalf of Jeremy Pinson

Portage, WI December 2012

Brothers and sisters with much love I open this. For all who know my writings in the past this may not be my best writing, but so much is going on. I fight for my life and with every word I write they want to kill me. I want to save the animals and fight for inmates' rights so I fight back. The vegan diet is so inadequate I'm suffering health problems and it is killing me. But I do not or will not give in.

The fight goes on. I was moved two times from the last writing. One because I felt the DOC got to the point that they no longer felt safe with me in the institution I was in. During a lockdown the inadequate food got worse, so I got others to make as much work as we could for the staff every day. We made them clean up and more. I would have hoped they would leave us on lockdown longer so staff would have to do work and so some inmates would get the action order and stop working with DOC staff against other inmates.

Within the last three months I have also got more people within my organization. It's getting stronger and the lawsuit for vegan rights is going well. We are looking for a lawyer to take the case as we cannot go into court without one because of the type of case. But what is also good is the DOC is putting lies within my request and other DOC papers.

I make this request to all inmates to stop allowing inmates and staff to not listen to what is going on. I do not lie, I tell the truth. That is why so many people are seeing me get things in order and making staff do what is by law. I do not take anything if it violates my rights. It's time to stand up and fight back. No fighting amongst us. Come together.

I end with this: I am not happy with myself. I have tried to help as much as I can, but the DOC is killing me. I will not stop. The food is so inadequate. But that is all I can say. And I had 14 inmates take part/engage in our solidarity demonstration on Sunday September 9, 2012. The solidarity part was great and now I am asking to take part in another one. I will be getting together the date for this one is April 19, 2013. I request all to take part who can because once we come together for just a day we show others not taking part we can come together. This will be a day of no food and for those who want, no work.

With love to all. Stand up in numbers. We must fight these injustices. I am only one voice and cannot do it by myself. I never have been able to.

In solidarity,

Animal rights activist
Manuel C. Salas
CCI
PO Box 900
Portage, WI 53901-0900

Stand Together

July 2012

I'm currently incarcerated at the Shirley Supermax in Massachusetts. On June 25, 2012 a prison guard was stabbed 21 times and today, July 1, 2012 still lays in intensive care. Upon emergency response, guards aggressively stormed the unit, teargassing and assaulting surrounding convicts. Convicts rightfully defended themselves. The end result was a total of 7 prison guards were hospitalized.

For too long, these guards, all the way up to the administration, have been jumping and assaulting convicts. Repression breeds repression, and it's that time where we will not stand for abuse. We will rightfully defend ourselves, and stand for our dignity and human rights.

We ask for all and any outside support, and all who are locked down, stand up, stand strong! Forever a right fist upon my heart!

In love, strength, and sacrifice...

Christopher S. Santos W-91004
PO Box 8000
Shirley, MA 01464

Tuscon, AZ

October 2012

Greetings brothers and sisters in the fight for true justice and acknowledgment of our rights as prisoners. I'm a convicted bank robber from Chicago and this is my first time communicating my thoughts and actions through this newsletter. I'm currently in the Special Housing Unit (SHU) here at USP Tuscon, AZ where I've been since March 2012. This SHU has had a history of injustice and cruelty towards inmates whenever it suits them. The SHU staff are known to set people up by placing them in cells and recreation cages with known enemies to create violence amongst us. I'm angered by the fact that some inmates will even assault other inmates in return for favors such as extra meals or coffee. To me that is the equivalent of working for the cops. The staff created a tier in the SHU that is on GNC (Got Nothing Coming) status and it is not authorized by the Bureau of Prisons' Program Statement and is a violation of an inmates' due process rights. They place inmates on this specific tier and feed them cold styrofoam trays, deny them clean laundry, and they rarely let the SHU inmate orderly on the tier to clean it. The SHU in its entirety is a huge disaster and no one seems to want to take a stand as a group. Even our medical needs and attention go on ignored by the medical staff. Well, enough was enough! On September 16th, 2012, two other inmates and myself took a stand and assaulted the SHU staff with weapons through our food slot. We also flooded our tiers and burned our cell down as well as vandalized the walls of the cells. We were placed in ambulatory restraints and separated so as to attempt to break our unity. We continued our attacks until we now all reside on the same tier. The "GNC status" tier is now nonexistent. That tier now gets the same food trays (hot) as the rest of the SHU. Medical staff is now here on a daily basis seeing to our (SHU) inmates' medical needs. Our tiers are now cleaned twice daily. If only three out of 200 inmates created that much of an impact imagine all inmates united as one giant fist. We must stand together as one. Solidarity is the deadliest weapon we have in our arsenal. We must move ahead.

With great respect,

Erwin Villatoro #115799-040
USP-Tuscon
PO Box 24550
Tuscon, AZ 85734

COMMENTARY AND CALLS TO ACTION

Don't Drink the Kool-Aid

December 2012

The prison system here in the Commonwealth has turned into one big brainwashing cult. The God they worship is the almighty dollar and the ministers of propaganda they employ bring home six-figure salaries. I want to tell you about a couple of the tactics these cult leaders use as their bread and butter suppression tools.

When you are treated in an abusive manner in prison, the captor tries to make you believe it is your fault. When a guard karate chops you in the scrotum as he "pats you down" leaving the chow hall, you are the bad guy for complaining. You are considered a disruptive prisoners and lugged to the hole for "disrupting the normal operations of the facility." When did karate chopping my scrotum become normal? I'm not drinking the Kool-Aid.

A guard with gangster envy will tell a powerful prisoner that another prisoner is a "rat" and some fool-hearty cons who want to appear "stand-up" will run with it. After all, they have nothing to do but engage in soap opera games. This guard, who could not lift a bundle of shingles, haul a lobster trawl, or solve a simple math equation, has just divided the unity of the prisoners. He has conquered us without a bullet fired. On the street he would be pumping gas but in here he is telling us who to trust or distrust. I'm not drinking the Kool-Aid.

The warden smiles in your face and tells you your complaints will be "looked into," and you walk back to your unit expecting some results. After a week passes and nothing changes, you're a bit less angry, but just frustrated enough to vow to never return to unhappy hour. You hit the yard, do a few pushups, and forget about your right to rehabilitation. I'm not drinking the Kool-Aid.

They place you in a cage, not big enough for one dignified man, to live with another man you do not know. They then come to you and tell you that you have to participate in some "audit" of the prison, which means you lose your hard-gained property, must be harassed for two solid weeks, and are expected to eat humble pie while mental defectives speak to you in a manner which would be answered with a bullet in many circles. Almost no one says "Hell no, we won't go" as far as this bullshit audit is concerned, and the only thing that becomes clear is that the oppressor can treat us in any manner he or she sees fit. I'm not drinking the Kool-Aid.

They have been paying us \$1.00 a day for decades. They took our family functions and holiday cookouts. They sell us defective property: \$200.00 typewriters and TV's. Harassment of our visits, dirty food trays, and stale bread. When did we sacrifice our dignity on the altar of foolishness? When did we decide that TV's and temporary single cells were more important than freedom? When did we choose to go into the ovens willingly? To drink the Kool-Aid?

The time has arrived to dump out the pitchers of oppressor Kool-Aid and fill them with the true nectar of the gods: Rebellion! Let your voice be heard. Encourage your brother to complain. One complaint letter per week, per prisoner would be 1000 letters of unity! Do yourself a favor and don't drink the Kool-Aid!

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Fortitude

December 2012

First and foremost, greetings to all and the utmost respect extended. It brings me frustration after reading PAN August 2012 that other state prison inmates come together in unity as one to push back, when being pushed, knowing our rights as a number behind these walls. TX prison inmates under fortitude have no will to fight for the cause of what's right. There's a handful that do fight and sacrifice their status in the end. I'm going on five years back here in max-ad seg Estelle High Security. Only can say it's getting worse instead of getting better. How much more is it going to take before they snap out of fortitude and take action? Stop acting like a turtle in his shell, scared of the noise and feeling "Why pop my head out and say something when behind my cell door I'm safe?" Let's come together against them, I know it works in unity as one. I've experienced doing time in a California prison on a hunger strike sit-down. It lasted for three weeks. That's all it took for the problem to be noticed. Be true to yourself and act for your rights that you have.

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A Message to Black August 2012:

As women of the struggle it is time we start gettin' it right. For too long we have stood against one another, unwilling to put aside our petty issues and stand united. We have allowed ourselves to be disrespected and to become enslaved with the life of crime and imprisonment. Our children should have been our priority, but instead we chose to make the streets, drugs, men and other things our priority. We should strive to follow in the footsteps of great revolutionaries such as Angela Davis, following the example she has given us.

When will we, as women, get it right? We must stop fighting with one another, set aside the things that separate us, and work together for equality, justice, peace, and freedom. The realization that unity is a key factor in overcoming our struggle should draw us together! Those of us who are older and more experienced need to teach those who are younger and more susceptible to outside influences. We must stand strong, refusing to accept defeat and persevere despite adversity.

Disrespect is a major problem among women, men, and youth alike. Many people are caught up in using terms such as nigga, cuz, bitch, and ho. This is unacceptable and should not be tolerated! As long as we are drugged out, in prison, or dead, we will never get the respect we deserve. It is time for us to command respect from all people, and in return give respect as well. Respect is paramount if we are going to stand united.

Enslavement to a life of crime and imprisonment has become an enormous problem for women over the years. This problem continues to grow at an alarming rate today. When is enough enough? We need to open our eyes and see that the unjust "justice" system does not care if we are male or female, young or old, they will throw us in prison just the same. Inside the belly of the beast, I see on a daily basis women who are so institutionalized that they can no longer function in society. They have literally been broken by the system that was supposed to rehabilitate them. It is essential that we lay down the life of crime and turn our focus to our careers as mothers, wives, sisters, and comrades. Once we get our priorities in order, we will be able to take our rightful positions in the world and become the leaders we are meant to be.

Let us not forget our children- our future. I cannot stress this point enough. So many children today are left alone in this world because their parents have chosen the fast life and have ended up dead or in prison. Our children look up to and depend on us. Setting good examples for them to follow is of utmost importance. Who will teach them the importance of honesty, respect and education among other things if their parents are in prison? Other people may lead them down the wrong path and teach them the wrong things. We need to be there to teach and guide our children, being positive role models and ensuring that they are on the right path in life.

My comrade sisters, let us look at the example set for us by Kathleen Cleaver and follow her lead! This great woman continues to press onward in the revolutionary movement despite persecution. We must start today by breaking the chains that have us bound in order to live in the freedom that knowledge has to offer. Once we have educated ourselves, we will strive for unity, command respect

and make our children our priority. We will no longer allow ourselves to become enslaved in a life of crime and imprisonment. Upon realizing our potential, we will be able to stand strong, overcoming the struggles that beset us. Today is the day; join together, never give up, never give in, always press onward despite our current circumstances! My sisters, it is time for an awakening- it is time to start gettin' it right!

If you have not read "The New Jim Crow by Michelle Alexander, it is an excellent book, filled with knowledge, and a must read. I would also like to thank the Minister of Justice, Mr. Bobby Dixon, for his support and friendship. All power to the people! In solidarity, with Panther love,

Comrade Amy Buckley

Deputy Minister NABPP/PC

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Prison is Modern Slavery

August 2012

Day in and day out we are bombarded by the media with stories of bias, prejudice, and abuse. Even here behind the razor wire we're constantly reminded of the moral necessity of accepting everyone for who and what they are, regardless of race, creed, gender or nationality.

And yet I wonder: what about prisoners? Why aren't incarcerated human beings considered human? People make mistakes- all people, not just those behind the wall. Some may be totally innocent of their charges or guilty of something other than what the DA in his or her zeal said they did. The point is, prisoners are people, and yet, apart from all others in America, are not treated as such. The reason is simply because prison is modern slavery, and our elected officials use prisoners to justify their paychecks.

The recent "Three Strikes" bill is a case in point. The fact is longer prison sentences do not reduce recidivism, and, in fact, may even increase it. The reason? Nothing good comes from treating human beings like animals. Even the Bureau of Justice statistics in a recent report admits that researchers found that recidivism rates do not go down due to longer, harsher sentences. In fact, harsher sentences may actually contribute to more crime.

The trouble is our elected officials are interested in only one thing- votes. If the victims' rights crowd makes more noise...but what would happen if a larger voting block, the inmates' rights and human rights advocates, made more noise? The answer lies in our families, our friends and former prisoners. If we want fairer sentencing and humane treatment then we must force the legislature to listen to us by sheer numbers. Grassroots advocates and human rights groups already exist. Add to them the families and friends of prisoners, as well as ex-prisoners, and we'll command the largest voting block by far.

To fix this problem, to end modern slavery, we'll need rapid-response teams, stand-outs, rallies, and the willingness to flood the state house with phone calls, emails and letters. The only way to free us is to use the army they built, by enslaving so many of us. Let them know that harsh sentencing, tough-on-crime legislation, and Human Rights violations equal lost elections.

Prison is evil. It is the most heinous device ever devised by man. It dehumanizes people and creates more crime. Ask our elected officials, with thousands of letters, what exactly are you trying to accomplish? Do you want less crime, due to proper corrections and re-entry, or more crime, to win votes by looking tough-on-crime?

Our families and friends can do something else: they can run for state-wide office, file petitions, go to the media with this question: do you want lower taxes, fewer crimes and safer streets, or do you want to continue to dehumanize people to feed the Prison Industrial Complex?

Massachusetts legislators must be taught to make evidence-based decisions when it comes to fair and humane criminal justice policies. They must be shown that draconian laws dehumanize citizens and abrogate the constitution will not be tolerated. And if you wonder who, exactly, will teach them, ask yourself this: if every inmate in the Commonwealth, approximately 10,000 strong, has just ten supporters each, that's 100,000 votes, enough to win a state-wide election. And what if we went back ten years and included former "slaves," how many votes would we have then? The only way to free ourselves is to become our own masters. The only way to overcome the legislature, is to become the legislature.

Samuel Conti
NCCI
Gardner, Mass.

Russell Means: Something Russ Said December 2012

Not too long ago, October 2012, Russell Means passed on, after a life of struggle against the culture of the Invaders of Turtle Island, that marked its beginning with Christopher Columbus, a culture that in all its facets, political, religious, economic, and social norms changed the destiny of native peoples of the Western hemisphere.

As a warrior and leader of warriors, Russ took on several battles, one of which was the re-occupation of the Black Hills of South Dakota at a place known as Camp Yellow Thunder. It is there that I had the occasion to meet and in a limited sense get to know Russ and listen to him talk, while performing everyday tasks in and around camp. It was during one of these times that I decide now to

memorialize, "Something Russ Said" which is that Native Americans are not criminals for breaking the laws of the United States. The only laws to which they are subject are tribal laws and laws of moral decency that are compliant with traditional standards, that property and wealth of non-natives is the direct result of invasion and occupation of the Americas and stolen from the Native peoples, and that we re just taking back what is ours to begin with. I am not quoting verbatim, but it is the essence of what Russ more eloquently conveyed and should it come to pass that Russ never put his thoughts on this down in writing, it is something about which Russ spoke and keeps it remembered for people to think about and discuss when evaluating an alleged criminal act committed by a Native American, is the act truly a crime or an act of war and/or resistance?

In this aspect, however, the non-native defines who is and who isn't a political prisoner/prisoner of war. Their definitions are not applicable to Native Americans unless they evaluate with the understanding of the socio-cultural-spiritual-economic effects that invasion, conquest and subjugation have had upon Native peoples and that all Native Americans convicted of a majority of acts deemed crimes by non-tribal governments can be directly attributed to the invasion, conquest and ongoing assimilation and subjugation of Native Americans and this makes us political prisoners and prisoners of war.

Ask yourself who is the real criminal. The Native American languishing in prison somewhere- everywhere in the United States, oftentimes serving a harsher sentence than a non-native who committed the same act, oftentimes imprisoned thousands of miles from family and friends, forced to eat substandard food, endure substandard medical care, denied parole after decades behind bars, denied the opportunity to meaningfully express and practice our spiritual/culture beliefs, that for many awakened after coming to prison or reconnected to, which prison administrators discourage as it enhances unity and discourages assimilation into dominant American society once the prisoner is released.

While Native peoples have become self aware and self-determined in part greatly due to Russell Means' service to the people, he remains an example of resistance.

In the spirit of resistance,
Eric Wildcat Hall

Instead of receiving my August edition of Prison Action News, I had my cell torn apart by prison staff accompanied by the Assistant Administrator, the highest ranking man in this prison at the present time. I was patted down, my property was scattered everywhere, and the only item taken was the address to the PAN newsletter that I give to inmates who also wish to receive the publication. The search, I was told, was because of my call for inmates to take unified action in refusing to work as trustees for a dollar or less a day to make it cheaper for the system to oppress us. All of the jobs inmates do must be done whether we do them or not. If we aren't the ones doing them, they can't afford to keep us in prison. Confiscating the address was a direct violation of my constitutional rights.

Despite my specifically stating that inmates must not turn to violence and take the "high road" so as not to justify CO's use of force, I was threatened with the charge of inciting a riot. Violence is what prison officials want. They rule by humiliation, division, force, and intimidation. By refusing to allow prison staff to forcefully engage us and feeding into them we take away their power and control over us.

Prison staff statewide were warned of my article, and the PAN newsletters across the state were taken. I was named as a "secure threat individual" and told that I can no longer seal my mail before I send it out. They are taking any steps they can to sever my lines of communication.

For all of the actions to stop me, I have only been encouraged to fight harder. Seeing what happened, no less than 10 inmates offered their assistance to my case. By trying to stop the movement, they have only made us stronger. The fact that prison officials have reacted in such manner only proves that they fear us working together. They are terrified of what I have set out to accomplish. Spread the word of "Prison Action News" and let those who fight oppression know they aren't alone.

Next time you are cooking food you don't even want to eat, sweeping up after somebody else, or washing somebody else's shitty underwear for slave wages just so states can oppress us for longer sentences, take anybody else you can and just walk away.

Smiley

From behind the enemy lines of the California State Prison System, from within the "Belly of the Beast" that is the Amerikan Injustice System, I greet you all and call your attention to the annual commemoration of Black August and I invite you fellow prisoners and families throughout Amerika to join us in honoring our beloved martyrs with fasting, study, sharing panther love, and knowledge in the spirit of our fallen comrades.

We shed tears for our fallen comrades and for the masses brutally victimized by the racist, fascist, murdering police. We have a right to cry over our dead- for every life is precious beyond measure. The loss of each who has been killed by the oppressor in this land of our exile and enslavement is intolerable. We consecrate this month to those who have been taken from us but who will never be forgotten- for the love of freedom which their lives were dedicated to.

Our grief is real, and so is our determination to continue the struggle until all are free and the oppression of our people is no more. Our grief and our pain make us more human- and stronger because they are based upon love. Our love and determination help the people to struggle on and bring us closer to liberation. We must stand up as one- a united people- determined to win our liberation in this century.

Black August is a month of great significance for Africans throughout the diaspora, but particularly here in the US where it originated. "August," as Mumia Abu-Jamal noted, "is a month of meaning, of repression and radical resistance, of injustice and divine justice, of repression and righteous rebellion, of individual and collective efforts to free the slaves and break the chains that bind us." The concept of Black August grew out of the need to expose to the light of day the glorious and heroic deeds of those Afrikan women and men who recognized and against the injustices heaped upon people of color on a daily basis in America.

To clear our minds, I propose that we eat but one meal a day throughout the month of August- and fast completely on August 7th, in honor of Jonathan Jackson, and on August 21st, in honor of George Jackson, and again on August 31st, in honor of Hasan Shakur. On these three fast days, we should be quiet and contemplative and throughout August we should study and abstain from watching TV and listening to the radio.

During this month, the veterans of the struggle and elders among us should make a special effort to reach out to and teach the youth our history and the lessons of our peoples' struggle. We should strengthen our commitment to practicing Panther Love and throw away old grudges and resentments and initiate new friendships. We draw those around us closer and build the bonds of brotherhood and sisterhood between us.

Besides fasting, Comrades should work out, and get a little physical exercise, and strive to put mind, body, and spirit in balance. Some texts I recommend for study are:

- 1.Revolutionary Notes by Julius Lester
- 2.Read like your life depends on it by Art Lewin
- 3.Bad the Autobiography of James Carr
- 4.No Justice, no Peace, from Emmett Till to Rodney King, by Atty. Terry Morris
- 5.Race Matters by Cornel West
- 6.Race in 21st Century America

From Comrade Bobby M. Dixon, Minister of Justice of the NABPP-PC